

Shailendra Kumar v. State of U.P. & Another

Allahabad High Court · Single Judge · 11 April 2019 · 2019 SCC OnLine All 4790 · Application U/S 482 Cr.P.C. No. 13903 of 2019 · **Application under s.482 Cr.P.C. dismissed; non-bailable warrant and proceedings not quashed**

HEADNOTE

The offence under Section 138 of the Electricity Act, 2003 (unauthorisedly reconnecting a meter/line after disconnection) is entirely distinct from a dispute about arrears/billing, which is governed by Chapter 6 of the U.P. Electricity Supply Code, 2005. Where a consumer's electricity was disconnected for non-payment of a revised bill and he then reconnected the line himself without following the reconnection procedure, an FIR and prosecution under Section 138 are not an abuse of process merely because a Consumer Forum had earlier set aside a different bill — that civil grievance does not touch the s.138 offence, and in any event the revised bill was neither paid nor challenged. On a s.482 application at the pre-trial stage the Court will not appreciate evidence or determine the genuineness of allegations; a prima facie s.138 case being made out, the proceedings and the non-bailable warrant (issued for non-appearance) were not quashed.

HOLDING-UNITS

INTERPLAY · EA2003::138

Unauthorised reconnection (s.138) is distinct from a billing/arrears dispute

QUESTION

Does a Consumer Forum order setting aside an earlier bill bar prosecution under s.138 for unauthorised reconnection after disconnection?

HOLDING

No. The s.138 offence of unauthorisedly reconnecting the line after disconnection is entirely different from the arrears/billing dispute (governed by Chapter 6 of the Code); the prosecution was for the reconnection, not for non-payment. A prior consumer-forum order on a different bill does not make the criminal proceedings an abuse of process, especially as the revised bill was neither paid nor challenged. At the pre-trial stage under s.482 the Court will not appreciate evidence; a prima facie s.138 case being made out, the proceedings and the non-bailable warrant were not quashed. ¶ 6-11

LIMITING FACTS

Supply disconnected on 13.3.2018 for non-payment of a revised bill; on inspection (30.5.2018) the line was found reconnected by the consumer; FIR under s.138 followed, charge-sheet filed, cognizance taken, NBW issued for non-appearance.

PRINCIPLE TAGS

s138-reconnection-offence-distinct-from-billing-dispute Prosecution for unauthorised reconnection under s.138 is independent of any billing/arrears dispute under Chapter 6 of the Code; a favourable consumer-forum order on a bill does not bar the s.138 prosecution. ¶ 6-8

section-482-sparingly-at-pre-trial-stage The inherent power under s.482 Cr.P.C. is used sparingly and not to appreciate evidence or test the genuineness of allegations at the pre-trial/summoning stage; where a prima facie offence is disclosed, the proceedings are not quashed. ¶ 9-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GUILT UNDER S.138 AND THE CORRECTNESS OF THE REVISED BILL

Left to the trial; the Court expressly declined to appreciate evidence at the pre-trial stage, and noted the revised bill had not been challenged before any competent court. ¶ 6, 9-10

